

Plaintiff's Complaint alleges Breach of Contract as the sole cause of action, based on the allegation that Defendant became indebted in the amount of \$12,256.13, on a credit card account.

Defendant's Answer denies the allegations of the Complaint and states various affirmative defenses.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the "RFAs") served on Defendant which was granted by the Court. See Order entered 12/4/25 (the "Deemed Admitted Order"). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$12,256.13.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 ("Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.").

### **Disposition**

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall file Order.

8. 9:00 AM CASE NUMBER: L25-05653  
CASE NAME: MARCOS RAMOS VENTURA VS. BABUSHKA RUSSIAN DELI & CAFE, INC.  
\*HEARING ON MOTION IN RE: STRIKE DEFENDANT'S ANSWER  
FILED BY:  
**\*TENTATIVE RULING:\***

### **Background**

Plaintiff filed a Motion to Strike Defendant's Answer, and served notice on the Defendant by Mail.

The Motion is unopposed.

### **Analysis**

California Code of Civil Procedure § 435(b)(1) provides that a party may serve and file a notice of motion to strike the whole or any part of a pleading within the time allowed to respond to the pleading. Under California Code of Civil Procedure § 436, the Court may:  
(a) Strike out any irrelevant, false, or improper matter inserted in any pleading; or

(b) Strike out all or any part of a pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

A corporation cannot represent itself in court. See *Merco Construction Engineers v. Municipal Court* (1978) 21 Cal.3d 725. This holding bars any officers of the corporation from appearing on behalf of the corporation unless they are licensed attorneys. *Id.*

In the instant matter, the Answer for the Defendant, a corporation, was provided by Zoriy Malkov, who appears to be an officer of the corporation, and is not an attorney. Thus, nothing this declarant provided in the Answer conforms to the law as held in *Merco*.

Plaintiff also attempted to meet and confer with Defendant prior to the filing of the Motion, but the attempt met no response.

Finally, any limits on the time within which a Motion to Strike must be filed are triggered by the service of the Answer on the Plaintiff. In the instant matter, there is no proof of the date on which the Answer was served on Plaintiff.

### **Disposition**

Plaintiff's Motion is Granted.

The Answer, in its entirety, will be stricken.

The Defendant will have 10 days from notice of this Order to file an Amended Answer.

Plaintiff to file Order.

9. 9:00 AM CASE NUMBER: L25-06986

CASE NAME: BANK OF AMERICA N.A. VS. RAFAEL ROMERO-ROMERO

\*HEARING ON MOTION IN RE: VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT

FILED BY: BANK OF AMERICA N.A.

**\*TENTATIVE RULING:\***

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address where the Defendant was personally served